STANDARD OPERATING PROCEDURE			G-5900
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 12/04/06	DATE REVISED **05/09/22**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE GENERAL	RESOURCES FOP CONTRACT			
SUBJECT OFF-DUTY EMPLOYMENT	CROSS REFERENCE G-5700 HOURS OF WORK/OVERTIME			

I. Purpose:

The purpose of this policy is to establish the guidelines for off-duty employment.

II. Policy:

The acceptance of a full-time paid position with the Sarpy County Sheriff's Office is accompanied by the mutual understanding that the employment is to be the member's primary occupation. If supplemental employment is sought, such shall be considered secondary in importance and subject to review by the Sheriff's Office. A review shall be conducted to determine if the employee's efficiency and effectiveness is or would be impaired by such outside employment and/or to determine if the off-duty employment would be incompatible with the member's county employment. Employees engaged in approved off-duty employment shall abide by all policies and procedures and are subject to Sheriff's Office supervision and chain of command.

III. Procedures:

A. Off-Duty Employment Approval:

1. Employees shall submit, through their chain of command, to the Sheriff or his designee, an Off-Duty Employment Request (sworn or non-sworn) form. The form shall describe the duties and responsibilities of the position of employment for which approval is sought.

2. Anytime new off-duty employment is sought or off-duty employment is resumed, the employee shall submit an Off-Duty Employment Request form. All off-duty employment requests shall be resubmitted each January and June for review of continuing off-duty employment.

3. Upon submission of an Off-Duty Employment Request form, the Sheriff or his designee may authorize off-duty employment within the following restrictions:

a) The outside employment does not conflict with the employee's county employment.

b) The outside employment does not violate G-1200 Standards of Conduct and Core Values.

c) Hours and days of work are within established guidelines (see G-5700 Hours of Work/Overtime).

4. No off-duty employment shall be undertaken until a request is submitted and fully approved, with the following exception:

a) In the event an off-duty employment opportunity arises at such a time that it would be impossible to submit a request for approval and an employee desires to substitute for another employee engaged in approved off-duty employment or to engage in off-duty employment approved for other employees with such other employees, he or she shall notify the appropriate chain of command.

B. Prohibited Off-Duty Employment: All employees of the Sheriff's Office are prohibited from working in any of the following off-duty employment situations:

1. Any employment or business which would in any way reduce the effectiveness of the employee in performing his or her Sheriff's Office duties.

2. Any employment or business continuously convicted of illegal sale of alcohol, narcotics, or contraband.

3. Any employment or business where the employee, wearing a Sheriff's Office uniform, is selling or endorsing a product or service, soliciting funds or material, or waiting on or serving people.

4. For any employer or establishment whose primary business is the sale or service of alcoholic beverages, without detailing the responsibilities of the employment on the Off-Duty Employment Request form.

5. As a process server, bill collector, investigator, or in any employment in which law enforcement powers might be used for private purposes of a civil nature.

6. Any employment which may require, as a criteria for employment, the employee to have access to law enforcement information, files or records and require furnishing that information as a condition of employment.

7. At any employment or business which has a connection with a tow business.

C. Off-Duty Employment While on Sick Leave/Disability:

1. Any employee on sick leave, disability, Family and Medical Leave Act leave or modified duty due to injury wishing to continue off-duty employment must reapply. The submission of an Off-Duty Employment Request form shall include a summary of injury, illness or disability.

2. The employee's request shall not be approved under the following conditions:

a) The off-duty employment is medically detrimental to the total recovery of the disabled employee as indicated by a professional judgment rendered by a competent medical authority.

b) The off-duty employment performed requires the same physical ability as would be required by the on-duty employee's job duties.

D. Use of County Property:

1. Vehicles and equipment owned by the county (with the exception of portable radios) are restricted from use during off-duty employment. Generally, county property shall not be used to accommodate the earning of private income. Upon specific written request to the Sheriff, this restriction may be waived if in the view of the Sheriff such equipment is necessary to ensure the safety of the employee and that county interests are furthered.

2. Employees shall utilize Sheriff's Office radios to facilitate communications when working approved off-duty employment in uniform or in a law enforcement capacity with-in the county. Employees shall provide Communications the following information when starting an off-duty shift:

a) The names and serial numbers of all employees working the off-duty shift.
b) The location of the off-duty employment.
c) The starting and ending times for the shift.
d) Any additional information regarding the off-duty employment (e.g. the potential need for on-duty personnel to respond).

3. Generally, equipment issued as personal items (e.g. aerosol subject restraints, handcuffs, ballistic vests, etc.) are exempt from the above restriction.